

B. Nguyen also declares Plaintiff is extremely frail, that she suffers from anemia and immunosuppression as a result of the AML, and has hypertension. Nguyen Decl., ¶ 7. Plaintiff also takes a number of medications daily for her symptoms and various medical conditions. Nguyen Decl., ¶ 7. The medical records attached to the declaration state Plaintiff has “profound osteoporosis”, which affected the treatment plan for the injury underlying Plaintiff’s Complaint. Nguyen Decl., Ex. D. Plaintiff’s terminal diagnosis, her discontinued treatment, her chronic pain, her compounding fracture injury, and her declining condition raise genuine concerns about her ability to meaningfully participate in this litigation, including her ability to provide testimony, assist counsel, attend trial, and endure the trial process. See Pl. Reply, 4:1-23 and citations therein.

In addition, Nguyen asserts, and the procedural history of this action shows, that all defendants have been served with process or have appeared in the action. Nguyen Decl., ¶ 2.

At bar, the information and evidence offered in the Nguyen declaration and the exhibits to that declaration are sufficient to show Plaintiff’s age (87) and present medical condition. *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534; Code Civ. Proc. § 36(a). As the only plaintiff in the action, Plaintiff has a substantial interest in the action as a whole. Plaintiff has presented specific evidence to show she suffers from a number of medical illnesses which include AML, hypertension, and osteoporosis. Nguyen Decl., Exs. B-D. The documented medical illnesses are significant and, indeed, one is considered terminal. Nguyen Decl., Exs. B-D. Defendants present no evidence to challenge the veracity of the medical information submitted by Plaintiff or which show there exists some circumstance under which a basis exists to require more detail. See *Fox*, 21 Cal.App.5th at 535. Under these circumstances, the Court finds Plaintiff has made a sufficient showing that she has a substantial interest in the action and her health is such that a preference is necessary to prevent prejudicing her interest in the litigation. Code Civ. Proc. § 36(a)(1)-(2). The Court lacks discretion to dispense with the statutory mandates under the record presented. *Miller v. Superior Court* (1990) 221 Cal.App.3d 1200, 1208-1209.

Plaintiff’s motion is granted. Trial is set for September 15, 2026, at 09:00 (the maximum 120-day trial date is September 19, 2026). See Code Civ. Proc. § 36(f). Pretrial conference is set for September 4, 2026, at 11:00. Mandatory settlement conference is set for August 10, 2026, at 10:00. All matters are set in Department 6.

4. CU0002532 Brian Taylor vs. Rolling Green, Inc.

Defendant Rolling Green, Inc.’s (“Rolling Green”) motion to set aside or vacate entry of default is granted.

Legal Standard

Relief under Code of Civil Procedure section 473(b) is either discretionary or mandatory. A motion for mandatory relief must be made no more than six months after entry of judgment and be accompanied by an attorney’s sworn affidavit attesting to the attorney’s “mistake, inadvertence, surprise or neglect.” Code Civ. Proc. § 473(b). The attorney affidavit of fault must contain a “straight forward admission of fault.” *State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 610. But it need not contain an explanation of the reasons for

the attorney's mistake, inadvertence surprise or neglect. *Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438-441. Relief must be granted "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." *Ibid.* A motion for relief under section 473(b) "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted" Code Civ. Proc. § 473(b).

Analysis

Rolling Green moves to set aside entry of default due to attorney "mistake, inadvertence, surprise or neglect." Code Civ. Proc. § 473(b). That request has merit.

Defendant filed this motion on March 4, 2026, slightly more than one week after the February 24, 2026, entry of default. Counsel for Defendant provides an affidavit regarding the excusable neglect involved. See Dineros Decl. Counsel claims the default was entered as a result of his belief the parties were undergoing settlement negotiations, and the unintentional oversight of being occupied by an ongoing trial. Dineros Decl., ¶¶ 4, 8-9. Counsel explains that on January 6, 2026, he emailed Plaintiff's counsel regarding a settlement demand, and on January 21, 2026, Plaintiff served an initial demand via email. Dineros Decl., ¶¶ 4, 7; Ex. B. Counsel states he was then engaged from late January 2026 through March 2, 2026 in trial preparation and trial attendance, which reached a jury verdict on March 2, 2026. Dineros Decl., ¶ 8. Counsel avers he immediately served Defendant's Answer on March 3, 2026, at which time he learned of the default. Dineros Decl., ¶ 9. Counsel then emailed Plaintiff's counsel that failing to file the answer was an "unintentional oversight," indicating counsel "was under the impression that we were working towards a resolution," and asking Plaintiff to stipulate to set aside default. Dineros Decl., ¶ 9. Plaintiff's counsel declined to stipulate and Defendant's counsel thereafter filed the underlying motion. Pritchard Decl., ¶¶ 9-10.

Defendant has demonstrated it is entitled to mandatory relief under Code of Civil Procedure section 473(b).

If mandatory relief is granted, the court must "direct the attorney to pay reasonable compensatory legal fees and costs" to the opposing counsel or parties. Code Civ. Proc. § 473(b). Plaintiff, a self-represented party, has made no request for either fees or costs or provided proof of the same. The Court concludes that Plaintiff has forfeited his right to the same.

5. CU0001483 Susan Gabrielle vs. Phillip G. Conlon, Jr.

The Court received the joint status report filed by the parties on May 12, 2026. Appearances are required by the parties to discuss a timeline for Defendant's retention of a realtor and listing of the property, or alternatively, refinancing the property. The Court is favorably inclined to set a further review on July 20, 2026, at 09:00.